

29. **Agreement founded thereon not enforced against the settlor.**—After much conflict of authority (*b*), it may now be considered as settled that an agreement founded on meritorious consideration will not be executed as against the *settlor himself* (*c*).

30. **How far enforced as against parties claiming under him.**—*As regards parties claiming under the settlor*, it was always admitted, that had the settlor sold the estate or become indebted, the equity of the *cestui que trust* claiming on the ground of meritorious consideration, would not [*82] bind a purchaser or creditors (*d*). * But if he subsequently made a voluntary settlement, or died without disposing of the estate by act *inter vivos*, then the old cases were that the equity would attach as against the volunteers under the settlement (*a*), a devisee or legatee (*b*), the heir-at-law or next of kin (*c*), with however the saving clause, that the Court would not have enforced it even as against these classes of persons, where they too could plead meritorious consideration (as if they were the children of the settlor), without a previous inquiry by the Master, whether they had any adequate provision independently of the estate (*d*). At the present day, however, it is conceived that even as against volunteers claiming under the settlor, with or without an adequate provision, a voluntary agreement, whether

it as against the child. *Downing v. Townsend*, Amb. 592.

(*b*) See *Bonham v. Newcomb*, 2 Vent. 365; *Leech v. Leech*, 1 Ch. Ca. 249; *Fothergill v. Fothergill*, Freem. 256; *Sear v. Ashwell*, cited *Gordon v. Gordon*, 3 Swans. 411, note; *Watts v. Bullas*, 1 P. W. 60; *Bolton v. Bolton*, Serjt. Hill's MSS. 77; S. C. 3 Sw. 414, note; *Goring v. Nash*, 3 Atk. 186; *Darley v. Darley*, 3 Atk. 399; *Hale v. Lamb*, 2 Eden. 292; *Evelyn v. Templar*, 2 B. C. C. 148; *Coleman v. Sarrell*, 1 Ves. jun. 50; S. C. 3 B. C. C. 12; *Antrobus v. Smith*, 12 Ves. 39; *Rodgers v. Marshall*, 17 Ves. 294; *Ellis v. Nimmo*, 1 L. & G. t. Sugd. 333. The subject will be found discussed at length in 3d edit. p. 95.

(*c*) *Antrobus v. Smith*, 12 Ves. 46; *Holloway v. Headington*, 8 Sim. 325; *Walrond v. Walrond*, Johns. 25.

(*d*) *Bolton v. Bolton*, 3 Serjt. Hill's MSS. 77; S. C. 3 Sw. 414, note; *Goring v. Nash*, 3 Atk. 186; *Finch v. Earl of Winchelsea*, 1 P. W. 277; and see *Garrard v. Lauderdale*, 2 R. & M. 453, 454.

(*a*) *Bolton v. Bolton*, *ubi supra*.

(*b*) *Ib.*

(*c*) *Watts v. Bullas*, 1 P. W. 60; *Goring v. Nash*, 3 Atk. 186; *Rodgers v. Marshall*, 17 Ves. 294.

(*d*) See *Goring v. Nash*, *Rodgers v. Marshall*, *ubi supra*.